

#	Case Name	Tentative
2	24-01437581 <i>Guzman vs. Gordon</i>	Motion to Quash Subpoena Withdrawn
3	24-01403120 <i>Homman Holding, Inc. vs. Epps</i>	Motion to Strike Portions Of Complaint Defendants Harold V. Epps; Liping Wang Epps; and Henry Wang; Honexpet, LLC; Betapet, LLC; and Cutepet LLC's Motion to Strike is GRANTED. The following allegations are ORDERED stricken: 1. "Epps and Wangs instructed AlphaPet's counsels Brian Wagner and Amir Farahani to file a Verified Answer denying Homman's request for such inspection to compromise AlphaPet's legal compliance under the California Corporation Statute so they could further cover up their fraudulent intentions and actions, which was subsequently sanctioned by this Court." (pg. 11, ¶ 52, lines 27-pg. 12, line 3.) 2. "assisted by Brian Wagner and Amir Farahani." (pg. 12, ¶ 53, line 6.) 3. "Amir Farahani's license has been suspended by the State Bar after his last appearances in Dept. C33 and C18 on behalf of AlphaPet against Homman's Petition and on behalf of Defendants in the current lawsuit. No one from Kutak Rock LLP informed Homman's counsel for such suspension. But Homman's counsel found it on her own after Kutak Rock LLP cancelled Amir Farahani's email in the last a few months and emails to him became undeliverable. Currently, a different lawyer from Kutak Rock, LLP, Bradley Boyer is working on this case without confirming he is the attorney on record with Brian Wagner. Bradley Boyer previously observed Amir Farahani's appearance in Department C33 and C18 starting from late 2024." (pg. 12, Footnote 1.) 4. "assisted by Brian Wagner and Amir Farahani." (pg. 12, ¶ 54, lines 16-17.) 5. "Epps and Wangs hired Brian Wagner and Amir Farahani as AlphaPet's counsels to mislead Homman, and later even mislead the Court that both locations were "closed" for business under penalty of perjury..." (pg. 13, ¶ 55, lines 3-5.) 6. "Homman through its counsel contacted AlphaPet's counsel Brian Wagner and Amir Farahani trying to arrange the onsite inspection in the middle of December 2024." (pg. 13, ¶ 56, lines 9-10.) 7. "In November 2024, Homman was informed by Brain Wagner and Amir Farahani..." (pg. 13, ¶ 57, lines 11-12.) 8. "On February 4, 2025, attorneys Amir Farahani, Brian Wagner, and Bradley Boyer emailed Homman's counsel, copying one another, and for the first time produced a copy of the lease termination letter for the SC Location dated August 7, 2024,

		along with the Asset Purchase Agreement executed by Epps on behalf of AlphaPet dated May 8, 2024.” (pg. 14, ¶ 62, lines 7-9.) 9. “As of this date, Brian Wagner and Amir Farahani have completely ceased communicating with Homman's counsel, even though they remain attorneys of record for AlphaPet and have filed no formal substitution of counsel with either Homman or the Court.” (pg. 15, ¶ 69, lines 16-18.) 10. “In December 2024, after Brian Wagner and Amir Farahani lost the Motion to Compel for refusing allowing [sic] on-site inspection and production of business books and record, attorney Bradley Boyer appeared in the ongoing case, without formal substitution.” (pg. 15, ¶ 70, lines 19-21.) 11. “Despite having agreed in writing to the deposition dates weeks in advance, confirmed dates for deposition properly noticed, Bradley Boyer cancelled three depositions in last minutes claiming his clients left for China after the noticed deposition dates and provided with deposition Zoom link. However, not for once, Bradly Boyer provided any proofs or justification for those no-shows by his clients.” (pg. 15, ¶ 71, lines 22-26.) 12. “Epps and Wangs caused Brian Wagner and Amir Farahani to make formal written objection to prevent Elevate Pet Life, LLC to produce the franchise records which Homman legally is entitled to under both California Corporate Code and Franchise Laws as a majority owner of AlphaPet.” (pg. 17, ¶ 77, lines 1-4.) This Court previously sustained Defendants’ demurrer in part with leave to amend. The grant of leave to amend in sustaining a demurrer “must be construed as permission to the pleader to amend the cause of action which he pleaded in the pleading to which the demurrer has been sustained.” (<i>People By and Through Dept. of Public Works v. Clausen</i> (1967) 248 Cal.App.2d 770, 785.) Here, Plaintiff was given leave to amend as to its (1) alter ego allegations because there was an unequal result if the actions of the corporation were treated as its actions alone; (2) third cause of action for fraudulent concealment because Plaintiff did not allege any action taken in reliance on the fraud; (3) fifth cause of action for abuse of control because it is redundant of the 4th cause of action for breach of fiduciary duty which alleges Defendants abused the control of AlphaPet; (4) eighth cause of action for unfair business practices because it failed to allege members of the public would be misled. Plaintiff’s allegations do not address any of the deficiencies for which leave to amend was granted. Thus, the at issue allegations exceed the scope of leave to amend granted to Plaintiff. Therefore, the allegations are stricken.
--	--	--